

Smti. Uma Ray vs Mridul Ray on 28 March, 2024

Author: Malasri Nandi

Bench: Malasri Nandi

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GAHC010135002021

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Mat.App./14/2021

SMTI. UMA RAY
D/O- SRI DASARATH RAY, R/O- VILL.- PACHAGARAH, P.O. AND P.S.
FAKIRAGRAM, DIST.- KOKRAJHAR (BTAD), ASSAM

VERSUS

MRIDUL RAY
S/O- LATE GIRIN CH. ROY, R/O- VILL.- BALDIA BATHAN, P.O. SHAKTI
ASHRAM, PIN- 783354, DIST.- KOKRAJHAR, ASSAM

Advocate for the Petitioner : MR. P J SAIKIA

Advocate for the Respondent : MR U DAS

BEFORE HONOURABLE MRS. JUSTICE MALASRI NANDI Date : 28-03-2024 JUDGMENT & ORDER (CAV) Heard Mr. P. Bordoloi, learned counsel for the appellant. None appears for the respondent.

2. This appeal is directed under Section 28 of Hindu Marriage Act, 1955 (herein before mentioned as Act 1955) against the judgment and decree dated 07.04.2021 passed by the learned District Judge, Kokrajhar, Assam Page No.# 2/10 in Title Suit (D) No. 22/2017 whereby the divorce was granted between the husband and wife fixing permanent alimony amounting to Rs.5,00,000/- (Rupees five lakhs).

3. The matrimonial dispute between the appellant and her husband came up for consideration in a divorce case. The appellant has no issue with the divorce granted by the trial court. She has filed this appeal for enhancement of the permanent alimony.

4. It was urged by the learned counsel for the appellant that while granting permanent and future alimony of maintenance, the learned trial court has failed to take into consideration that the

respondent is a Central Government employee and his monthly salary is more than Rs.40,000/- and that there is no liability on the part of the respondent as all his brothers has separate source of income. On the other hand, the appellant is an unemployed destitute lady without any source of income to maintain herself nor has any other able person to maintain her. According to learned counsel for the appellant, the trial court has committed grave error in determining the quantum of maintenance amount in favour of the appellant.

5. It is also the submission of the learned counsel for the appellant that in determining the maintenance amount the learned trial court failed to take into consideration as to the status of the parties, cost of living, as well as high rise in price of day to day essential commodities, the longevity of life etc. and thereby granted permanent alimony of Rs.5,00,000/- which is a meager amount caused great injustice to the appellant.

6. Learned counsel for the appellant has also contended that while granting Page No.# 3/10 permanent and future alimony of Rs.5.00.000/- to the appellant, the learned trial court did not make any observation on the basis of which the said lump sum amount has been calculated.

7. It is further submitted that the objective of granting permanent and future alimony of maintenance is to ensure that the dependent spouse is not reduced to destitution or vagrancy on account of the failure of the marriage. Moreover, the factors which would weigh with the court are the status of the parties, reasonable needs of the wife and the capacity of the husband to pay having regard to his reasonable expenses etc. The amount of maintenance should be such as the wife can live in reasonable comfort considering her status and mode of life. But the trial court without taking into consideration this aspect of the matter has passed the judgment and decree granting permanent and future alimony of Rs.5,00,000/- only as maintenance to the appellant which is liable to be set aside.

In support of his contention the learned counsel for the appellant has placed reliance on the following case laws:

(i) AIR 1997 SC 3397 (Jasbir Kaur Seagal vs District Judge, Dehradun)

(ii) AIR 2004 Delhi 442 (S.S. Bindra vs Tarvinder Kaur)

(iii) AIR 2010 Gau 170 (Mrinali Baruah vs Jayanta Kr. Patgiri)

(iv) AIR 2017 SC 2383 (Kalyan Dey Choudhry Vs. Rita Dey)

8. Now the question comes whether the appellant/wife is entitled to maintain an application for enhancement of permanent alimony.

Section 25(2) of Hindu Marriage Act, 1955 provides that if a court is Page No.# 4/10 satisfied that there is a change in the circumstances of either party at any time after the order of alimony was made, it may at the instance of the either party, modify or rescind or any such order in such manner

as may be deemed just by the Court. This provision gives recurring cause of action to either of the parties to the matrimonial dispute to have the order or the permanent alimony varied, modified or rescinded. In this way, the aforesaid statutory provisions empower the parties to give the order fixing permanent alimony revised subsequently if there is a change in circumstances.

9. In the case in hand, it appears that the trial court had fixed the permanent alimony on a lump sum basis, not on the basis of the salary drawn by the respondent.

10. In the case of P. Achala alias Atchamamba vs Varada Siva Rama Krishna , reported in AIR 2008 (AP) 216, it was held that enhancement of maintenance under Section 25(2) of the Act, 1955 is a substantive right which cannot be denied. A similar view was expressed by the Himachal Pradesh High Court in the Case of Kubza Devi vs Isher Dass reported in AIR 2017 (HP) 21, wherein it has been held that the maintenance fixed by the order of the court can be enhanced in changed circumstances under Section 25 (2) of the Act, 1955 and that the principle of estoppels would not be attracted. It was also observed that if the maintenance has been fixed by way of settlement also in compelling circumstance with the passage of time and due to rise in cost of living, if the wife has no sufficient means to maintain herself, she is entitled to seek enhancement.

11. It is useful to quote Lord Atkin who observed- "The wife's right to future maintenance is a matter of public concern which she cannot barter away".

Page No.# 5/10 If the aforesaid principle is followed, it is but obvious that no party to the matrimonial dispute even by agreement, choose to give up their statutory right for future enhancement/reduction in maintenance and any contract to the contrary would not be valid in the eye of law.

12. In view of the aforesaid facts and circumstances, this Court is of the view that despite the fact that in the decree of divorce passed by the learned trial court, permanent alimony was fixed on a lump sum basis, however, the appellant in accordance with the statutory provisions, is entitled to maintain the application seeking its enhancement as contemplated under Section 25 of Hindu Marriage Act, 1955.

13. Now coming to the question how much amount should be enhanced for payment of permanent and future alimony to the appellant.

14. In matrimonial cases, the court has to ascertain the financial capacity/status of both the parties for fixing maintenance. In many developed countries, the law prescribes a comprehensive format of assets, income and expenditure to be filed by both the parties at the very threshold of matrimonial litigation. However, there is no provision of law in our country for directing the parties to disclose their assets, income and expenditure in a particular format. However, in the case of Rajnesh vs Neha, reported in AIR 2021 SC 569 Hon'ble Supreme Court has formulated a guideline directing all the courts in India to follow the same in matrimonial dispute. In para 64 and 65 of the case is reproduced below:

"64. In the first instance, the family court in compliance with the mandate of section 9 of the Family Courts Act, 1984 must make an endeavor for settlement of the dispute. For this, Section 6 provides Page No.# 6/10 that the State Government shall, in consultation with the High Court, make provision for counselors to assist a Family Court in the discharge of its functions. Given the large and growing percentage of matrimonial litigation, it has become necessary that the provisions of Sections 5 and 6 of the Family Courts Act are given effect to, by providing for the appointment of marriage counselors in every Family Court, which would help in the process of settlement. If the proceedings for settlement are unsuccessful, the Family Court would proceed with the matter on merits.

65. The party claiming maintenance either as a spouse, or as a partner in a civil union, live-in relationship, common law marriage, should be required to file a concise application for interim maintenance with limited pleadings, along with an Affidavit of Disclosure of Assets and Liabilities before the court concerned, as a mandatory requirement. On the basis of the pleadings filed by both parties and the Affidavits of Disclosure, the court would be in a position to make an objective assessment of the approximate amount to be awarded towards maintenance at the interim stage."

15. Section 25 empowers the court to award permanent alimony and maintenance to the spouse. The application under Section 25 can be filed either at the time of passing of the decree or at any time subsequent thereto. Section 25 lays down that the court can direct the applicant to pay the maintenance and support of the applicant such gross sum or such monthly or periodical sum for a period not exceeding the life of the applicant having regard to the respondent's own income and other property, if any, and the income and other property of the applicant. It further lays down that the court has also to take into account the conduct of the parties and other circumstances of the case. Sub section (2) also provides for the modification or revocation of the order passed under Sub Section (1) in case of changed in the circumstances of the party which were prevailing at the time of passing of the initial order. Sub Section (3) further provides another contingency when the court can interfere with Page No.# 7/10 the initial order of granting maintenance. Taking these aspects together there are sufficient guideline to adjudicate the claim of maintenance.

16. Section 25 is ancillary to the main proceedings under the Act. The limitations upon the exercise of power are contained in the provision itself. This is clarifying by the provisions contained in sub Section (3) of Section 25 of the Act, where the circumstances in which the alimony is likely to be withdrawn are specified. However, the benefit of the provision is not to be denied to the parties who have suffered the misfortune to have their marriage dissolved by the decree of the court, merely on account of the passing of the decree. If they are otherwise entitled to the maintenance and it was certainly not the intention of the law that the parties to the dissolved marriage must suffer further misery of starvation without grant of alimony.

17. It is the duty of the court to ascertain the true income of the parties and then pass the appropriate order relating to maintenance. In the case in hand, though it reflects from the order of this court that the respondent was directed to submit his up to date salary certificate but he failed to

produce the same. It transpires that he intentionally avoids to furnish his salary certificate for fixing the reasonable and just maintenance towards permanent and future alimony in favour of the appellant. However, salary certificate of the respondent is available in the record which shows that his monthly salary in the month of June, 2022 was Rs. 47,411/- after deduction.

18. The learned counsel for the appellant has calculated the alimony in the following manner:

Page No. # 8/10 If the net salary of the respondent is assumed to be Rs.40,000/-(Rupees forty thousand), per month, then 1/3rd of Rs.40,000/- is Rs. 13,333/- only (Rupees thirteen thousand three hundred thirty three only).

If longevity of the appellant is assumed to be 60 years (at present 40 years of age) then for one year, the amount comes to Rs.13,333 x12= 1,59,996/- (Rupees one lakh fifty nine thousand nine hundred ninety six only).

For 20 years, the amount comes to 1,59,996 x 20= 31,99,920/- (Rupees thirty one lakhs ninety nine thousand nine hundred twenty only).

19. I have considered the calculation submitted by the learned counsel for the appellant on permanent alimony which I found to be reasonable. None has appeared on behalf of the respondent to make any objection on the submission of the appellant.

20. In B. P. Achala Aanand vs S. Appi Reddy reported in (2005) 3 SCC 313, Hon'ble Supreme Court observed that on the dissolution of marriage by a decree of divorce, the right of the divorced wife are confined to Section 25 and 27 of the Act. The relevant portion of the said judgment is reproduced herein below:

".....Section 25 enables the court to pass an order for providing alimony and maintenance in favour of the divorced wife. Section 27 enables the Court to make provisions in the decree in respect of a property that may belong to the wife or to both on the status of wife being terminated by a decree of divorce under the Hindu marriage Act, the rights of the divorced wife seemed to be crabbed, confined and cabined by the provision of the Hindu Marriage Act and the rights available under Section 25 and 27 of the Act."

21. In Vinny Parmvir Parmer vs Paramvir Parmer, reported in (2011) 13 SCC Page No.# 9/10 112, Hon'ble Supere Court laid down broad principles for determining permanent alimony. The relevant portion of the said judgment is as under:

"..... As per Section 25 while considering the claim of permanent alimony and maintenance of either spouse, the respondent's own income and other property and the income and other property of the applicant are all relevant material in addition to the conduct of the parties and other circumstances of the case. It is further seen that the Court considering such claim has to consider all the above relevant material and

determine the amount which is to be just for living standard. No fixed formula can be laid for fixing the amount of maintenance. It has to be in the nature of things which depend on various facts and circumstances of each case. The court has to consider the status of the parties, their respective needs, the capacity of the husband to pay, having regard to reasonable expenses for his own maintenance and others which he is obliged to maintain under the law and statute. The courts also have to take note of the fact that the amount of maintenance fixed for the wife should be such as she can live in reasonable comfort considering her status and mode of life she was used to live when she lived with her husband. At the same time, the amount so fixed cannot be excessive or affect the living condition of the other party. These are all the broad principles Courts have to be kept in mind while determining maintenance or permanent alimony."

22. In Vidhya Viswanathan vs Kartik Valakrishnan reported in (2014) 15 SCC 21, Hon'ble Supreme Court while affirming the decree of divorce, awarded permanent alimony of Rs.40,00,000/- to the wife under Section 25 of the Hindu Marriage Act. The Supreme Court took into consideration that the wife was not working and would not be able to maintain herself.

23. In view of the above principle of law laid down by the Hon'ble Supreme Court, this Court is of the view that the petitioner is entitled to get enhanced permanent and future alimony from the respondent. Accordingly, the appeal is allowed affirming the decree of divorce granted by the trial court dissolving the marriage between the parties namely, Uma Page No.# 10/10 Roy and Mridul Roy with further direction under Section 25 of the Hindu Marriage Act, 1955 that the respondent shall pay to the appellant Rs. 32,00,000/- (Rupees thirty two lakhs) as permanent and future alimony within a period of six months from the date of this judgment. There is no order as to cost.

24. If the respondent has failed to comply with the direction of this Court, the appellant is at liberty to realize the aforesaid amount by filing application before the appropriate forum to deduct the amount from his salary on installment basis as per direction of the authority concerned.

26. With the aforesaid observation and direction, this appeal is disposed of.

JUDGE Comparing Assistant